

FORM F68
(RULE 15-6 (12))

Court File No.: _____

Court Registry: _____

In the Supreme Court of British Columbia

Claimant: _____

Respondent: _____

NOTICE OF APPLICATION FOR COMMITTAL

[Rule 21-1 of the Supreme Court Family Rules applies to all forms.]

To: _____
[name of person]

WHEREAS on _____ the creditor,
[dd mmm yyyy]

_____, obtained against you an order to pay
[name]

[set out terms of order]

and the creditor alleges that you

have failed or neglected to make payment in accordance with the order and that you knew of the order;

TAKE NOTICE that an application will be made by the creditor at the courthouse at

at _____
[time of day]

_____ [address]
on _____ for an order committing you to prison;
[dd mmm yyyy]

AND TAKE NOTICE that the creditor will rely on the following affidavit(s) in support of the application:

[Using numbered paragraphs, list the affidavits on which the creditor will rely. Each affidavit included on the list must be identified as follows: "Affidavit #..... [sequential number, if any, recorded in the top right hand corner of the affidavit]..... of[name]....., made[dd/mmm/yyyy].....".]

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[if more space is required - attach page and state "See Attached"]

WARNING: Failure to attend at the hearing of this application can result in your arrest and committal to prison
WITHOUT SERVICE ON YOU OF ANY FURTHER NOTICE OR DOCUMENT.

Date: _____
[dd mmm yyyy]

Signature of ☐ creditor ☐ lawyer for creditor(s)

[type or print name]

Address for service of creditor(s):

ENDORSEMENT OF AMOUNT PAYABLE

[Set out, in the form of an account, the amount of the debt or installment owing, the costs incurred on the order and on proceedings subsequent to the order, the amounts paid and the dates of payment and the interest owing and how it was computed.]

Subtotal	\$ _____
Add Expenses of service	\$ _____
Total amount payable	\$ _____

If the total amount payable is paid to the creditor or into court for the account of the creditor before the date of the hearing, you are excused from attending.